

21STCP03280 21STCP03280

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-03

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Case Number: 21STCP03280 Hearing Date: August 3, 2026 Dept: 224

Hurtado et al., v. Pomona Valley Hospital et al.,

TENTATIVE RULING

The motion is GRANTED. The May 11, 2026 supplemental designation is stricken, and the opinion testimony of Drs. Macho and Lubow is excluded at trial.

ANALYSIS

Introduction

On October 1, 2021, Plaintiff John Louis Hurtado, by and through his successor-in-interest, filed this action against Defendant Pomona Valley Hospital Medical Center and others.

On February 27, 2026, Defendant served a Demand for Exchange of Expert Witness Information in advance of a May 11, 2026 trial date.

On March 23, 2026, the parties served their respective expert witness designations.

On May 11, 2026, Defendant served a Supplemental Designation of Expert Witnesses.

On May 13, 2026, Plaintiffs filed the instant Motion to Strike Defendant's Tardy Supplemental Expert Witness Designation.

No opposition has been filed.

Legal Standards

CCP § 2034.300 requires the Court to, on objection of any party who has made a complete and timely compliance with Section 2034.260, "exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (a) List that witness as an expert under Section 2034.260. (b) Submit an expert witness declaration. (c) Product reports and writing of expert witnesses under Section 2034.270. (d) Make that expert

available for a deposition under Article 3 (commencing with Section 2034.410)."

Motion to Strike Expert Designation

As an initial matter, Plaintiffs may invoke section 2034.300, as they served a complete designation and declaration on the March 23, 2026 exchange date. (Ex. D.) On the record presented, Plaintiffs' compliance is complete and timely, and they may invoke section 2034.300.

Plaintiffs first challenge Defendant's supplemental designation as untimely. The Court agrees that it is. Section 2034.280(a) requires any supplemental list to be served within 20 days after the exchange. Here, the May 11, 2026 supplemental designation was not authorized by section 2034.280, as the 20-day window closed on or about April 12, 2026, and Defendant served its designation 49 days after the exchange.

Further, the designation also exceeds the substantive scope of a supplemental designation. A supplemental list may reach only subjects covered by an adverse party's expert on which the supplementing party "has not previously retained an expert to testify." (§ 2034.280(a).) Here, Defendant had already retained experts on the very subjects Drs. Macho and Lubow are offered to address. Dr. Josephson was designated on standard of care, causation, damages, wound-related care, and the reasonableness of medical costs. (Motion, Exh. E, p. 7). Nurse Higelin was likewise designated on the wound-care standard of care. Section 2034.280 does not permit a party to add further experts on subjects it already covered in its initial exchange.

Because the supplemental designation was neither timely nor within the statute's authorized scope, it did not operate to "list" Drs. Macho and Lubow as experts under section 2034.260. (§ 2034.300(a).)

Conclusion

The motion is GRANTED. The May 11, 2026 supplemental designation is stricken, and the opinion testimony of Drs. Macho and Lubow is excluded at trial.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.